

HOUSE No. 2513

The Commonwealth of Massachusetts

PRESENTED BY:

Bridget Plouffe

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to health care transparency.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Bridget Plouffe</i>	<i>9th Plymouth</i>	<i>1/17/2025</i>
<i>David Paul Linsky</i>	<i>5th Middlesex</i>	<i>2/21/2025</i>
<i>Rodney M. Elliott</i>	<i>16th Middlesex</i>	<i>2/21/2025</i>
<i>Paul McMurtry</i>	<i>11th Norfolk</i>	<i>2/21/2025</i>
<i>James Arciero</i>	<i>2nd Middlesex</i>	<i>2/21/2025</i>
<i>Shirley B. Arriaga</i>	<i>8th Hampden</i>	<i>9/16/2025</i>

HOUSE No. 2513

By Representative Plouffe of Brockton, a petition (accompanied by bill, House, No. 2513) of
Bridget Plouffe and others relative to the use of the term physician. Public Health.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 3606 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to health care transparency.

*Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority
of the same, as follows:*

1 SECTION 1. Chapter 112 of the General Laws is hereby amended by striking out section
2 8A and inserting in place thereof the following section:-

3 Section 8A. No person may, directly or indirectly, use the title "physician" or display or
4 use the term physician in any title, advertisement, listing of affiliations, communication with the
5 public or in any other manner to indicate or imply in any way that such person offers to engage
6 or engages in the practice of medicine or in the provision of health care services to patients
7 within the commonwealth who is not registered by the board of registration in medicine as a
8 physician under section 2, nor use or imply the use of the words or terms "surgeon," "medical
9 doctor," "doctor of osteopathy," "M.D.," "anesthesiologist," "cardiologist," "dermatologist,"
10 "endocrinologist," "gastroenterologist," "general practitioner," "gynecologist," "hematologist,"

“internist,” “laryngologist,” “nephrologist,” “neurologist,” “obstetrician,” “oncologist,”
“ophthalmologist,” “orthopedic surgeon,” “orthopedist,” “osteopath,” “otologist,”
“otolaryngologist,” “otolaryngologist,” “pathologist,” “pediatrician,” “primary care physician,”
“proctologist,” “psychiatrist,” “radiologist,” “rheumatologist,” “rhinologist,” “urologist,” or any
similar title or description of services with the intent to represent that the person practices
medicine. This section shall not apply to use of the term "chiropractic physician" by individuals
licensed and practicing under sections 89 to 97, inclusive, or the use of the term "podiatric
physician" by individuals licensed and practicing under sections 13 to 22, inclusive, or the use of
the term "physician assistant" by individuals licensed and practicing under sections 9C to 9K,
inclusive. A person who violates this section shall be punished by a fine of not less than \$100
and not more than \$1,000 or by imprisonment for not less than 30 days and not more than 1 year
in the house of corrections, or by both such fine and imprisonment.

SECTION 2. Said chapter 112 is hereby further amended by adding the following
section:-

Section 290. (a) For the purposes of this section, the following terms shall have the
following meanings:

"Advertisement", any communication or statement, whether printed, electronic, or oral
that names the health care practitioner in relation to his or her practice, profession, or institution
in which the individual is employed, volunteers or otherwise provides health care services. This
includes business cards, letterhead, patient brochures, email, Internet, audio and video, and any
other communication or statement used in the course of business.

“Deceptive” or “misleading” includes, but is not limited to, any advertisement or affirmative communication or representation that mis-states, falsely describes, holds out or falsely details the health care practitioner’s profession, skills, training, expertise, education, board certification or licensure.

“Health care practitioner”, any person who engages in acts that are the subject of licensure or regulation.

“Licensee”, a health care practitioner who holds an active license with the licensing board governing his or her practice in the Commonwealth.

(b) An advertisement for health care services that names a health care practitioner must identify the type of license held pursuant to the definitions under this chapter. The advertisement shall be free from any and all deceptive and misleading information.

(c) A health care practitioner providing health care services in the Commonwealth must conspicuously post and affirmatively communicate the practitioner’s specific licensure as defined under this chapter, which shall consist of the following:

1. The health care practitioner shall wear a photo identification name tag during all patient encounters that shall include (i) a recent photograph of the practitioner (ii) the practitioner’s name; (iii) the type of license; and (iv) the expiration date of the license. The name tag shall be of sufficient size and be worn in a conspicuous manner so as to be visible and apparent.

51 2. The health care practitioner shall display in his or her office a writing that clearly
52 identifies the type of license held by the health care practitioner. The writing must be of
53 sufficient size so as to be visible and apparent to all current and prospective patients.

54 (d) A health care practitioner who practices in more than one office shall be required to
55 comply with these requirements in each practice setting.

56 (e) A medical doctor or doctor of osteopathic medicine who supervises or participates in
57 collaborative practice agreements with non-medical doctors or non-doctors of osteopathic
58 medicine health care practitioners shall be required to conspicuously post in each office a
59 schedule of the regular hours when he or she will be present at that office.

60 (f) Health care practitioners working in non-patient care settings, and who do not have
61 any direct patient care interactions, are not subject to the provisions of this section.

62 (g) Failure to comply with any provision under this section shall constitute a violation of
63 this section and chapter 93A.